

BILLMAN v HARMON

23CV47101

CROSS-DEFENDANTS' DEMURRER TO FIRST AMENDED CROSS-COMPLAINT

Now before the Court is a demurrer filed by Cross-Defendants Jamie Billman, Myrna Ray Reynolds, LLC, and Billman's Cool Roofing Company, Inc. ("Cross-Defendants") to the First Amended Cross-Complaint ("FACC") filed by Defendant/Cross-Complainant Krystal Harmon ("Harmon").

On March 18, 2025, the above-referenced parties filed a joint stipulation and order permitting Harmon to file a Second Amended Cross-Complaint ("SACC") within five (5) days of the order. Filing of the SACC would moot the demurrer to the FACC currently on calendar.

Accordingly, this matter is postponed until April 4, 2025, at 9:00 a.m. in Dept. 2, for a determination as to whether the SACC was timely filed, thereby mooting the demurrer to the FACC. In the event the SACC is timely filed, this demurrer will be dropped from calendar.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

MULRY, JR. v LAKESIDE VENTURES, LLC, et al

23CV47109

**PLAINTIFF'S DEMURRER TO COUNTERCLAIM; LAKESIDE VENTURE'S MOTION
TO SET ASIDE DEFAULT; PLAINTIFF'S DEFAULT HEARING RE LAKESIDE
VENTURES, LLC**

This is a dispute arising out of the rental of a mobile home space at a mobile home park located at 1475 Railroad Flat Road, Mokelumne Hill, California, 95245 ("Property"). Now before the Court is the demurrer brought by Plaintiff/Counter-Defendant Edward Mulry's ("Mulry") as to the counterclaim purportedly brought by Lakeside Mobile Home Estates, LLC ("Lakeside") and Bonnie Hurley ("Hurley")(collectively "Counterclaimants")

Demurrer to Counterclaim

As an initial matter, the Court notes that Lakeside has not properly filed an Answer or Counterclaim. On January 6, 2025, Hurley filed an Answer and counterclaim against Mulry on behalf of both herself and Lakeside. However, Lakeside is a limited liability company. As such, it cannot represent itself and must be represented by a licensed attorney. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

In the interests of justice, the Court will issue a provisional tentative ruling on the demurrer. A final ruling will be delayed until April 18, 2025, at 9:00 a.m. in Dept. 2, in order to allow Lakeside an opportunity to seek licensed counsel.

Mulry's request for judicial notice is granted in part and denied in part. The Court grants judicial notice only to those matters (court filings) that the Court is obligated to take judicial notice of but cannot take judicial notice of other extraneous evidence (declarations, leases).

As set forth below, the demurrer is provisionally sustained in part and overruled in part.

I. FACTUAL BACKGROUND